

उद्योग, ऊर्जा, कामगार व खनिकर्म विभागाच्या अधिनस्त कंपनी अधिनियम, २०१३ च्या कलम ८ अंतर्गत महाराष्ट्र गुंतवणूक प्रोत्साहन संस्था - “इन्व्हेस्ट महाराष्ट्र” (Maharashtra Investment Promotion Agency - Invest Maharashtra) स्थापन व कार्यान्वित करण्याबाबत.

महाराष्ट्र शासन
उद्योग, ऊर्जा, कामगार व खनिकर्म विभाग
शासन निर्णय क्रमांक: संकीर्ण-२०२५/प्र.क्र.१२३/उद्योग-३
मादाम कामा मार्ग, हुतात्मा राजगुरु चौक
मंत्रालय, मुंबई ४०००३२
तारीख: ५ जून, २०२६.

वाचा :

या विभागाचा शासन निर्णय क्रमांक: मऔधो-२०२३/प्र.क्र.१८७/उद्योग-२, दि.३१.१२.२०२५

प्रस्तावना :

सन २०४७ पर्यंत “विकसित भारत” होण्याच्या उद्दिष्टाकडे देश वेगाने वाटचाल करीत आहे. यासाठी धोरणात्मक आराखड्याच्या माध्यमातून सन २०२८ पर्यंत ५ ट्रिलियन अमेरिकन डॉलर अर्थव्यवस्था आणि सन २०४७ पर्यंत ३० ट्रिलियन अमेरिकन डॉलर अर्थव्यवस्था बनण्याच्या दिशेने सक्षमपणे प्रगती करीत आहे. आज भारत स्थैर्य, लवचिकता आणि विकासाचे प्रतीक बनला आहे. भारत जगातील सर्वात वेगाने वाढणारी मोठी अर्थव्यवस्था असून, विश्वासाह जागतिक भागीदार म्हणून उदयास आला आहे. तसेच, नवोन्मेष, उत्पादन क्षेत्र आणि शाश्वत विकासाला चालना देणारा देश म्हणूनही भारताची ओळख निर्माण झाली आहे. या राष्ट्रीय विकासगाथेच्या केंद्रस्थानी भारताची आर्थिक शक्ती म्हणून ओळखले जाणारे महाराष्ट्र राज्य असून, राज्याचा राष्ट्रीय सकल देशांतर्गत उत्पादनात (GDP) सुमारे ५१ लाख कोटी रुपयांचा वाटा आहे, तसेच देशाच्या औद्योगिक उत्पादनात १५.४% पेक्षा अधिक योगदान आहे. महाराष्ट्र राज्याने परकीय थेट गुंतवणूक (FDI) आकर्षित करण्यात सातत्याने देशात आघाडी राखली असून, गेल्या दशकात देशातील एकूण FDI प्रवाहांपैकी ३१% पेक्षा अधिक वाटा महाराष्ट्राचा राहिला आहे.

विशाल आर्थिक क्षमता, प्रगत धोरणात्मक चौकट, सक्षम गुंतवणूकदार वर्ग, धोरणात्मक भौगोलिक स्थान आणि जागतिक दर्जाची औद्योगिक पायाभूत सुविधा यांच्या बळावर महाराष्ट्र भारतातील सर्वात सक्षम आणि स्पर्धात्मक औद्योगिक परिसंस्थांपैकी एक म्हणून उदयास आला आहे. राज्यातील मुंबई, पुणे, नागपूर, संभाजीनगर आणि नाशिक ही प्रमुख शहरे वित्तीय सेवा, आयटी/आयटीईएस, लॉजिस्टिक्स, इलेक्ट्रिक वाहन (EV), स्वच्छ ऊर्जा आणि प्रगत उत्पादन क्षेत्रांची प्रमुख केंद्रे म्हणून सातत्याने विकसित होत असून, अनेक उदयोन्मुख क्षेत्रे व प्रदेश पुढील काळात विकासाच्या नव्या संधी निर्माण करीत आहेत.

तामिळनाडू, कर्नाटक, गुजरात, उत्तर प्रदेश, तेलंगणा, आंध्र प्रदेश आणि राजस्थान यांसारख्या राज्यांनी त्यांच्या औद्योगिक क्षमतेच्या पलीकडे जाऊन गुंतवणूक प्रोत्साहन संस्था, तसेच जागतिक गुंतवणूकदार सुविधा केंद्रे स्थापन केली आहेत, ज्यायोगे गुंतवणूक आकर्षित करणे आणि जागतिक स्तरावर संपर्क वाढविणे त्यांना शक्य होत आहे. यास्तव, महाराष्ट्राने आपले नेतृत्व स्थान टिकवून ठेवण्यासाठी आणि सन २०३० पर्यंत १ ट्रिलियन अमेरिकन डॉलर अर्थव्यवस्थेचे उद्दिष्ट साध्य करण्यासाठी उपरोक्त नमूद शासन निर्णयातील तरतुदीनुसार उद्योग, ऊर्जा, कामगार व खनिकर्म विभागाच्या अधिनस्त कंपनी अधिनियम, २०१३ च्या कलम ८ अंतर्गत जागतिक दर्जाची गुंतवणूक प्रोत्साहन संस्था स्थापन करून कार्यान्वित करण्याची बाब शासनाच्या विचाराधिन होती.

शासन निर्णय:

सन २०३० पर्यंत १ ट्रिलियन डॉलर अर्थव्यवस्था बनण्याच्या राज्याच्या दृष्टीकोनाच्या अनुषंगाने, उद्योग विभागाने दिनांक ३१.१२.२०२५ रोजीच्या शासन निर्णयासमवेतच्या “महाराष्ट्र उद्योग, गुंतवणूक व सेवा धोरण-२०२५” यामध्ये नमूद केल्याप्रमाणे उद्योग, ऊर्जा, कामगार व खनिकर्म विभागाच्या अधिनस्त कंपनी अधिनियम, २०१३ च्या कलम ८ अंतर्गत महाराष्ट्र गुंतवणूक प्रोत्साहन संस्था - “इन्व्हेस्ट महाराष्ट्र” (Maharashtra Investment Promotion Agency - Invest Maharashtra) ही गुंतवणूक प्रोत्साहन संस्था स्थापन करून कार्यान्वित करण्यास या शासन निर्णयान्वये मान्यता देण्यात येत आहे.

२. “इन्व्हेस्ट महाराष्ट्र” ही संस्था महाराष्ट्र उद्योग, व्यापार व गुंतवणूक सुविधा अधिनियम, २०२३ आणि नियम २०२५ अंतर्गत गुंतवणूक आकर्षण व सुलभीकरणासाठी कार्य करेल. “इन्व्हेस्ट महाराष्ट्र” ही संस्था धोरण विकास तसेच गुंतवणूक प्रोत्साहन व आकर्षणावर लक्ष केंद्रित करेल. त्याचबरोबर महाराष्ट्र औद्योगिक विकास महामंडळ (MIDC), महाराष्ट्र उद्योग, व्यापार व गुंतवणूक सुलभीकरण कक्ष (MAITRI), उद्योग संचालनालय (Directorate of Industries), महाराष्ट्र इंडस्ट्रियल टाउनशिप लिमिटेड (MITL) तसेच राज्यातील इतर संबंधित संस्थांबरोबर समन्वय साधून जागतिक व देशांतर्गत गुंतवणूकदारांच्या सर्वांगीण गरजा पूर्ण करण्यासाठी कार्य करेल. ही सेवा अर्थव्यवस्थेतील प्राथमिक, दुय्यम आणि तृतीयक अशा सर्व क्षेत्रांतील गुंतवणूकदारांसाठी उपलब्ध असेल.

३. महाराष्ट्र गुंतवणूक प्रोत्साहन संस्था - “इन्व्हेस्ट महाराष्ट्र” (Maharashtra Investment Promotion Agency - Invest Maharashtra) संरचना :-

१)	संस्थेचे नाव	उद्योग, ऊर्जा, कामगार व खनिकर्म विभागाच्या अधिनस्त कंपनी अधिनियम, २०१३ च्या कलम ८ अंतर्गत महाराष्ट्र गुंतवणूक प्रोत्साहन संस्था - “इन्व्हेस्ट महाराष्ट्र” (Maharashtra Investment Promotion Agency - Invest Maharashtra)
२)	उद्देश	महाराष्ट्राच्या २०३० पर्यंत १ ट्रिलियन-डॉलर अर्थव्यवस्थेच्या ध्येयास, तसेच २०४७ पर्यंतच्या “विकसित महाराष्ट्र” दृष्टिकोनास आणि त्यानंतरच्या सातत्यपूर्ण वाढ व विकासास अनुरूप राज्याची जागतिक प्रतिमा अधिक बळकट होण्यास्तव महाराष्ट्र राज्यात अधिकाधिक

		गुंतवणूकीसाठी जागृती करून प्रोत्साहन देणे आणि राज्यास गुंतवणूकीचे जागतिक गंतव्यस्थान म्हणून प्रस्थापित करणे.
३)	मालकी	सदर संस्था पुर्णतः (१०० टक्के) महाराष्ट्र शासनाच्या (उद्योग विभाग) मालकीची असेल.
४)	प्रशासकीय परिषद	परिशिष्ट क्र. १ मध्ये दर्शविल्याप्रमाणे प्रशासकीय परिषद कार्यरत राहिल.
५)	प्रशासकीय रचना	मुख्य कार्यकारी अधिकारी- अपर मुख्य सचिव/प्रधान सचिव/सचिव (उद्योग) मुख्य कार्यान्वयन अधिकारी- विकास आयुक्त (उद्योग) कार्यकारी संचालक- इन्व्हेस्ट महाराष्ट्र
६)	संचालक मंडळ	परिशिष्ट क्र. २ मध्ये दर्शविल्याप्रमाणे संचालक मंडळ कार्यरत राहिल.
७)	संचालक मंडळाचे अधिकार	१) कंपनी अधिनियम, २०१३ च्या कलम ८ वरील तरतूदीनुसार सदर संस्था स्वायत्त असेल. २) सदर संस्थेच्या उद्देशपूर्तीसाठी विविध उपक्रम राबविण्यास मान्यतेचे अधिकार संचालक मंडळास राहतील. ३) सदर संस्थेचा उद्देश व दैनंदिन कार्यपूर्तीसाठी आवश्यक मनुष्यबळ, तज्ञ सल्लागार नेमण्याचे अधिकार संचालक मंडळास राहतील. ४) संस्थेच्या उद्देशानुरूप भविष्यातील व्यापक कार्यक्रम, उपक्रम आणि कार्ये पार पाडण्यासाठी विविध स्रोतातून निधी (शासनाचे सहाय्यक अनुदाने, सामाजिक दायित्व निधी, स्वेच्छा देणगी, शुल्क आकारणी व इतर स्रोत) प्राप्त करता येईल व मिळणा-या निधीचा विनियोग करता येईल.
८)	कार्ये	१) गुंतवणूक आकर्षणासाठी जनजागृती करणे आणि राज्यामध्ये येण्याकरिता गुंतवणूकदारांना सुविधा उपलब्ध करून देणे; २) जिल्ह्यांमध्ये, राज्यांमध्ये व निवडलेल्या आंतरराष्ट्रीय ठिकाणी पथ प्रदर्शने (रोड शो) आयोजित करणे; ३) संभाव्य गुंतवणूकदारांचा शोध घेण्यासाठी व राज्यामध्ये संभाव्य गुंतवणूक निर्माण करण्यासाठी दुतावास, वाणिज्य दुतावास, औद्योगिक संघटना, इतर देशांची मंत्रालये यांच्याशी सहयोग करणे; ४) जागतिक क्षेत्रीय कल निर्धारित करण्याकरिता कंट्री डेस्क उभारणे/ क्षेत्रीय विश्लेषण करणे; ५) बाजारपेठेच्या अनुषंगाने अहवाल, सारसंग्रह, नियतकालिके, लेख व इतर माहिती, शिक्षण व संप्रेषण साहित्य तयार करणे आणि त्या प्रसिध्द करणे; ६) संभाव्य सामंजस्य करारावर स्वाक्षरी करणे, त्याचा पाठपुरावा व संनियंत्रण करणे, गुंतवणूक प्रस्थापनेत सहाय्य करणे; ७) गुंतवणुकीशी संबंधित माहिती असलेल्या संभाव्य संधी ओळखण्यासाठी व त्यास सहाय्य करण्यासाठी व्यापारी संस्थेसोबत सहयोग करणे;

		८) साहसी भांडवलदार/एंगेल मुंतवणूकदार यांच्यासोबत संबंध प्रस्थापित करणे; ९) विदेशात राहणाऱ्या मराठी स्थलांतरितांसोबत संबंध प्रस्थापित करणे आणि महाराष्ट्रामध्ये गुंतवणुकीकरिता त्यांना प्रोत्साहन देणे; १०) खरेदीदार-विक्रेता संबंध प्रस्थापित करण्यासाठी व्यासपीठ निर्माण करणे आणि त्यास चालना देणे.
९)	सल्लागार मंडळ	विविध औद्योगिक संघटनांचे कमाल २५ सदस्यांची निवड करून नियुक्ती करण्याची कार्यवाही संचालक मंडळ करेल.

४. इन्व्हेस्ट महाराष्ट्र या उपक्रमासाठी संदर्भाधीन शासन निर्णयानुसार रु.३००० कोटीची अर्थसंकल्पिय तरतुदीस मान्यता देण्यात आलेली असून यापैकी महसुल निर्मिती आणि विस्तारक्षम प्रभावावर लक्ष केंद्रित करण्यासाठी रु.१००० कोटी ची तरतुद कॅटॅलिटिक फंड म्हणून निश्चित करण्यात आलेली आहे. सदर संस्थेची नोंदणी आणि इतर अनुषंगिक कार्यान्वयन याकरिता होणारा खर्च मैत्री कक्षाच्या २८५२ ए०२२ या लेखाशिर्षाखालील मंजूर तरतुदीतून भागविण्यास याद्वारे मान्यता देण्यात येत आहे.

५. कंपनी अधिनियम, २०१३ च्या कलम ८ अंतर्गत सदर संस्थेची नोंदणी करण्यासाठी आवश्यक असलेले Memorandum of Association (MoA) आणि Articles of Association (AoA) या सोबत परिशिष्ट क्र. ३ व ४ येथे जोडण्यात आलेले आहे. त्यानुसार मैत्री कक्षामार्फत सदर संस्थेची विहित पद्धतीने कंपनी अधिनियम, २०१३ व त्यांतर्गतच्या नियमांनुसार नोंदणी करण्याची कार्यवाही करावी.

६. इन्व्हेस्ट महाराष्ट्र या उपक्रमासाठी आवश्यक असलेले मनुष्यबळ आणि कार्यालयाबाबत स्वतंत्ररित्या आदेश निर्गमित करण्यात येतील.

सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा संकेतांक २०२६०६०५११४९०६६०१० असा आहे. हा आदेश डिजीटल स्वाक्षरीने साक्षांकित करून काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने.

(डॉ.पी.अनुबलन,भा.प्र.से.)
प्रधान सचिव (उद्योग), महाराष्ट्र शासन

प्रत,

१. मा. राज्यपाल यांचे सचिव, राजभवन, मुंबई
२. मा. मुख्यमंत्री यांचे अपर मुख्य सचिव/प्रधान सचिव, मंत्रालय, मुंबई
३. मा. उपमुख्यमंत्री (नगरविकास)/ मा. उपमुख्यमंत्री (रा.उ.शु.) यांचे प्रधान सचिव, मंत्रालय, मुंबई
४. सर्व मा. मंत्री यांचे खाजगी सचिव/स्वीय सहायक, मंत्रालय, मुंबई
५. सर्व मा. राज्यमंत्री यांचे खाजगी सचिव/स्वीय सहायक, मंत्रालय, मुंबई

६. मा. विरोधी पक्षनेता, विधानपरिषद/विधान सभा यांचे खाजगी सचिव, विधान भवन ,मुंबई
७. सर्व विधानमंडळ सदस्य, महाराष्ट्र राज्य, मुंबई
८. मा. मुख्य सचिव यांचे सहसचिव, मंत्रालय, मुंबई
९. सर्व अपर मुख्य सचिव/प्रधान सचिव/सचिव, मंत्रालयीन प्रशासकीय विभाग, मंत्रालय, मुंबई
१०. महालेखापाल, लेखापरिक्षा/ लेखा व अनुज्ञेयता, महाराष्ट्र-१/२, मुंबई/नागपूर.
११. संचालक, लेखा व कोषागारे, मुंबई
१२. अधिदान व लेखा अधिकारी, मुंबई
१३. निवासी लेखापरिक्षण अधिकारी, मुंबई
१४. विकास आयुक्त (उद्योग), उद्योग संचालनालय, मुंबई
१५. अतिरिक्त विकास आयुक्त, मैत्री कक्ष, मुंबई
१६. सर्व सहसचिव/उपसचिव/अवर सचिव/कार्यासन अधिकारी (उद्योग), उद्योग, ऊर्जा, कामगार व खनिकर्म विभाग, मंत्रालय, मुंबई
१७. निवड नस्ती

परिशिष्ट-१

प्रशासकीय परिषद (GOVERNING COUNCIL)

१	मा. मुख्यमंत्री	अध्यक्ष
२	मा. उपमुख्यमंत्री (१ आणि २)	सह अध्यक्ष
३	मा. मंत्री, उद्योग	उपाध्यक्ष
४	मा. राज्यमंत्री, उद्योग	सदस्य
५	मा. मुख्य सचिव	सदस्य
६	अपर मुख्य सचिव/प्रधान सचिव/ सचिव (वित्त)	सदस्य
७	अपर मुख्य सचिव/प्रधान सचिव/ सचिव (नियोजन)	सदस्य
८	अपर मुख्य सचिव/प्रधान सचिव/ सचिव (ऊर्जा)	सदस्य
९	अपर मुख्य सचिव/प्रधान सचिव/ सचिव (कामगार)	सदस्य
१०	अपर मुख्य सचिव/प्रधान सचिव/ सचिव (पर्यावरण)	सदस्य
११	अपर मुख्य सचिव/प्रधान सचिव/ सचिव (कौशल्य विकास)	सदस्य
१२	अपर मुख्य सचिव/प्रधान सचिव/ सचिव(उच्च व तंत्रशिक्षण)	सदस्य
१३	अपर मुख्य सचिव/प्रधान सचिव/ सचिव (पर्यटन)	सदस्य
१४	विकास आयुक्त (उद्योग)	सदस्य
१५	आवश्यकतेनुसार संबंधित विभागाचे सचिव	निमंत्रित सदस्य
१६	अपर मुख्य सचिव/प्रधान सचिव/ सचिव, (उद्योग)	सदस्य सचिव

परिशिष्ट-२
संचालक मंडळ (BOARD OF DIRECTORS)

अ.क्र.	पदनाम	पदाचा तपशील
१	मा. मुख्यमंत्री	अध्यक्ष
२	मा. मंत्री, उद्योग	उपाध्यक्ष
३	अपर मुख्य सचिव/प्रधान सचिव/सचिव (उद्योग)	मुख्य कार्यकारी अधिकारी तथा संचालक
४	विकास आयुक्त (उद्योग)	मुख्य कार्यान्वयन अधिकारी तथा संचालक
५	मुख्य कार्यकारी अधिकारी, महाराष्ट्र औद्योगिक विकास महामंडळ	संचालक
६	व्यवस्थापकीय संचालक, महावितरण	संचालक
७	व्यवस्थापकीय संचालक, महाराष्ट्र प्रदुषण नियंत्रण मंडळ	संचालक
७	अतिरिक्त विकास आयुक्त (उद्योग), मैत्री कक्ष	संचालक
८	कार्यकारी संचालक, इन्व्हेस्ट महाराष्ट्र	संचालक

टिप: संचालक मंडळाच्या संरचनेत प्रशासकीय परिषदेच्या मान्यतेने बदल/सुधारणा करता येतील.

सद्य:स्थितीत इन्व्हेस्ट महाराष्ट्र ची कंपनी कायदांतर्गत नोंदणी प्रक्रियेसाठी खालील नमूद संचालक मंडळास मान्यता देण्यात येत आहे.

अ.क्र.	पदनाम	पदाचा तपशील
१	अपर मुख्य सचिव/प्रधान सचिव/सचिव (उद्योग)	मुख्य कार्यकारी अधिकारी तथा संचालक
२	विकास आयुक्त (उद्योग)	मुख्य कार्यान्वयन अधिकारी तथा संचालक
३	मुख्य कार्यकारी अधिकारी, महाराष्ट्र औद्योगिक विकास महामंडळ	संचालक
४	अतिरिक्त विकास आयुक्त (उद्योग), मैत्री कक्ष	संचालक

परिशिष्ट-३

**MEMORANDUM OF ASSOCIATION
OF**

INVEST MAHARASHTRA

(A Company Limited by Guarantee and not having Share Capital)
Incorporated under Section 8 of the Companies Act, 2013

I. NAME:

The name of the Company is “Maharashtra Investment Promotion Agency - INVEST MAHARASHTRA.”

II. REGISTERED OFFICE:

- I. The Registered Office of the Company will be situated in Mumbai, Maharashtra i.e. within the jurisdiction of Registrar of Companies, Mumbai.

III. OBJECTS:

A. MAIN OBJECTS TO BE PURSUED UPON INCORPORATION ARE:

1. To act as an apex investment promotion and facilitation agency for the State of Maharashtra and to promote Maharashtra as a preferred domestic and global investment destination.
2. To facilitate and support domestic and foreign direct investment (FDI) across sectors including manufacturing, services, infrastructure, technology, startups, MSMEs, and emerging industries, etc.
3. To provide investor handholding, advisory, after-care and post-investment support services, and to facilitate investor access to the single-window system operated by the Maharashtra Industry, Trade and Investment Facilitation Cell (MAITRI), without itself exercising any approval, clearance or licensing function.
4. To collaborate with Government departments, public sector undertakings, local bodies, statutory authorities, industry associations, chambers of commerce, academic institutions and international organizations for investment promotion and industrial development.
5. To organize, participate in, and support investment summits, roadshows, conferences, exhibitions, trade fairs, buyer-seller meets, and outreach programs at state, national, and international levels, etc.
6. To facilitate sector-specific investment opportunities, industrial corridors, clusters, special economic zones, industrial parks, logistics hubs and innovation ecosystems in Maharashtra.
7. To conduct, commission, and publish research, policy studies, surveys, and market intelligence related to investment, policies, economic development and competitiveness.

8. To provide capacity building, training, and knowledge support to Government officials, investors, entrepreneurs, and other stakeholders on investment-related matters.
9. To promote sustainable, inclusive, and responsible investment aligned with environmental, social, and governance (ESG) principles.
10. To Undertake activities permitted under Schedule VII to the Companies Act, 2013, from time to time and act as an implementation agency, subject to the fulfilment of the necessary conditions, in terms of section 135 of the Companies Act, 2013.

B. MATTERS WHICH ARE NECESSARY FOR FURTHERANCE OF THE OBJECT SPECIFIED IN CLAUSE 3 (A) ARE:

1. Establish offices, facilitation centers, helpdesks, and representative offices in India and abroad.
2. Develop, operate, and maintain digital platforms, portals, databases, dashboards, and information systems for investor facilitation and monitoring.
3. Enter into Memorandum of Understanding (MoUs), agreements, partnerships, and collaborations with Government bodies, multilateral agencies, private entities, and not-for-profit organizations.
4. Receive grants, aids, CSR Funds, contributions, subscriptions, sponsorships, donations, and assistance from Government, international agencies, institutions, and other lawful sources, subject to applicable laws.
5. To act as CSR implementing agencies by obtaining CSR-I registration.
6. Engage consultants, experts, professionals, and agencies for technical, legal, financial, or operational support.
7. Constitute, manage and operate dedicated funds, including a Catalytic Fund, with separate accounting and governance, to support Frontier and Emerging Sectors, in accordance with applicable law.
8. Acquire, lease, hire, or dispose of movable and immovable property necessary for achieving the objects of the Company.
9. Undertake awareness campaigns, publications, media outreach, branding, and communication initiatives related to investment promotion.
10. Provide advisory, facilitation, and non-commercial support services to investors and stakeholders on a cost-recovery or not-for-profit basis.
11. Apply for, obtain, hold, and comply with all licenses, registrations, approvals, and permissions required under applicable laws.
12. To make Rules and Regulations and Bye –Laws for the conduct of the affairs of the Company and to add, to amend, vary or rescind them from time to time.
13. To do all such other lawful acts and things as may be necessary or incidental to the attainment of the above objects.

Provided that the Company shall not support with its funds, or endeavor to impose on, or procure to be observed by its member or others, any regulations or restriction, which, as an object of the Company, would make it a Trade Union.

IV. The objects of the company extend to the whole of India.

V. OBJECTS NOT TO BE CARRIED OUT FOR PROFIT:

- a) The profits, if any, or other income and property of the Company, whenever derived, shall be applied, solely for the promotion of its objects as set forth in this memorandum.
- b) No portion of the profits, other income or property aforesaid shall be paid or transferred, Directly, or indirectly by way of dividend, bonus, honorarium, by way of share in profits, or otherwise to persons who at any time are, or have been members of the Company or to any one or more of them or to any persons claiming through any one or more of them.
- c) No remuneration or any other benefit in money or money's worth, shall be given by the Company to any of its members, except payment of out-of-pocket expenses, reasonable and proper interest on money lent, or reasonable and proper rent on promises let to the Company.
- d) Nothing in this clause shall prevent the payment by the Company in good faith of prudent remuneration to any of its officers or servants (not being member) or to any other person (not being members) in return for any services actually rendered to the Company.
- e) Nothing in clauses (iii) and (iv) shall prevent the payment by the Company in good faith of prudent remuneration to any of its members in return for any services (not being services of a kind which are required to be rendered by a member) rendered to the Company.

VI. No alteration shall be made to this Memorandum of Association or to the Articles of Association of the Company which are for the time being in force, unless the alteration has been previously submitted to and approved by the Registrar of Companies, Mumbai.

VII. LIABILITY:

The liability of the Members is limited to the extent of guarantee given by them.

VIII. CAPITAL:

The Company is limited by guarantee and does not have a share capital. Each member of the company undertakes to contribute to the assets of the company in the event of its being wound up while he is a member or within one year afterwards, for payment of the debts and liabilities of the company, a sum not exceeding Rs. 1000/- (Rupees One Thousand Only).

IX. (1) True accounts shall be kept of all sums of money received and expended by the Company and the matters in respect of which such receipts and expenditures take places, and of the property, credits and liabilities of the Company; and, subject to any reasonable restrictions as to the time and manner of inspecting the same that may be imposed in accordance with the regulations of the company for the time being in force, the accounts shall be opened for the inspection of the members.

(2) Once at least in every year, the accounts of the Company shall be examined, and the correctness of the balance sheet and the income and expenditure account shall be ascertained by one or more properly qualified auditor or auditors.

X. WINDING UP:

If upon the winding up or dissolution of the Company, there remains, after the satisfaction of all its debts and liabilities, any property whatsoever, the same shall not be distributed among the Members of the Company but shall be transferred to such other Company having objects similar to the objects of this company, subject to the approval of the State Government, and subject to such conditions as the Tribunal may impose, or may be sold and proceeds thereof credited to the Rehabilitations and Insolvency Fund formed under Section 269 of the Act.

XI. The Company can be amalgamated only with another company registered under Section 8 of the Act and having similar objects.

XII. SUBSCRIPTION:

We, the several persons whose names, addresses, descriptions, and signatures are subscribed hereunder, are desirous of being formed into a Company not for profit in pursuance of this Memorandum of Association.

sr. No.	Name & Address of Subscriber	Description	Signature	No. of Members	Date
1.	Dr. P. Anbalagan (IAS), Principal Secretary (Industries) Mantralaya, Mumbai-32 Occupation: Service Address: DIN No.:	Principal Secretary (Industries), GoM		1	
2.	Shri. P. Velrasu (IAS), CEO, Maharashtra Industrial Development Corporation (MIDC), Udyog Sarathi, Mahakali Caves Road, Marol Industrial Area, Andheri East, Mumbai- 400093, Maharashtra Occupation: Service Address: DIN No.:	Chief Executive Officer (CEO), Maharashtra Industrial Development Corporation (MIDC), Mumbai		1	

3.	Shri. Deependra Singh Kushwah (IAS), Development Commissioner (Industries), 2nd Floor, New Administrative Building, Opposite Mantralaya, Mumbai-32 Occupation: Service Address: DIN No.:	Development Commissioner (Industries), Directorate of Industries, GoM		1	
4.	Shri. Vaibhav Waghmare (IAS), Maharashtra Industry, Trade & Investment Facilitation Cell (MAITRI), Krupanidhi (MSSIDC) Building, 9, Walchand Hirachand Marg, Ballard Estate, Mumbai-38 Occupation: Service Address: DIN No.:	Additional Development Commissioner (Industries), Maharashtra Industry, Trade & Investment Facilitation Cell (MAITRI)		1	

Place: Mumbai, Maharashtra

Date:

परिशिष्ट-४

ARTICLES OF ASSOCIATION
OF
INVEST MAHARASHTRA

(A Company Limited by Guarantee and not having Share Capital under Section 8 of the Companies Act, 2013)

I. PRELIMINARY & INTERPRETATION

1. Application of Table H: The provisions contained in Table 'H' in the First Schedule to the Companies Act, 2013, shall apply to this Company so far as they are applicable to a Private Company being a company incorporated under Section 8, except as expressly modified or impliedly restricted by these Articles.
2. Definitions: In these Articles, unless the context otherwise requires:
 - a) "Act" or "Companies Act" or "Companies Act, 2013" means the Companies Act, 2013, together with all its rules, regulations, notifications, circulars, clarifications and statutory amendments or re-enactments thereof for the time being in force;
 - b) "Applicable Law" means any law, statute, ordinance, rule, regulation, notification, order, judgement, guideline, policy directive, or governmental instruction having the force of law and applicable to the Company;
 - c) "Articles" means these Articles of Association of the Company, as altered, amended or substituted from time to time;
 - d) "Board" means the Board of Directors of the Company, constituted in accordance with the Act and these Articles;
 - e) "Chairman/ Chairperson" means the Chairman/Chairperson so designated or appointed by the Government of Maharashtra;
 - f) "Chief Executive Officer" or "CEO" means the chief executive officer or equivalent principal executive officer of the Company appointed in accordance with Applicable Law and these Articles
 - g) "Chief Operating Officer" or "COO" means the officer entrusted with to supervise day-to-day operational management of the company or designated by the Board or the Government of Maharashtra;
 - h) "Executive Director" or "ED" means the officer entrusted with day-to-day operational management and daily affairs of the company or duties designated by the Board;

- i) “Company” means Invest Maharashtra, a company incorporated under Section 8 of the Act;
 - j) “Director” means a director appointed or deemed to be appointed under the Act and includes nominee, additional, alternate and ex-officio directors where applicable;
 - k) “Financial year” shall have the meaning assigned to it under Section 2(41) of the Act;
 - l) “Government Resolution” or “GR” means any resolution, order, notification, circular, direction, or instruction issued by the Government of Maharashtra under applicable law;
 - m) “Governing Council” means the apex policy oversight, strategic guidance and inter-departmental coordination body constituted by the State Government under the MAITRI Act and/or Government Resolution in relation to the Company.
 - n) “Industries Department” means the Industries, Investment & Services Department, Government of Maharashtra.
 - o) “MAITRI Act” means the Maharashtra Industry, Trade and Investment Facilitation Act, 2023, together with amendments, rules, notifications and statutory modifications thereof;
 - p) “Memorandum” or “MoA” means the Memorandum of Association of the Company, as amended from time to time;
 - q) “Member” means the subscriber to the Memorandum and/or any person entered in the Register of Members of the Company in accordance with the Act;
 - r) “Register of Members” means the register maintained under the Act;
 - s) “Section 8 Company” means a company licensed under Section 8 of the Act for charitable, not-for-profit or public purpose objects;
 - t) “Seal” means the common seal of the company;
 - u) “State Government” means the Government of Maharashtra, acting through its duly authorised departments and officers, agencies or instrumentalities.
3. Interpretation: Unless the context otherwise requires:
- a) Words importing the singular shall include the plural and vice-versa.
 - b) Words importing any gender shall include all genders.
 - c) Headings are for convenience only and shall not affect interpretation.
 - d) References to persons shall include individuals, companies, bodies corporate, governments, authorities, associations and other legal entities;
 - e) References to any statute or provision of law shall include any amendment, re-enactment or replacement thereof
 - f) The words “include”, “includes” and “including” shall be deemed to be illustrative and without limitation; and

- g) References to writing or written shall include electronic modes recognised under Applicable Law
- 4. Unless the context otherwise requires, words or expressions contained in these Articles shall have the same meaning as in the Act or any statutory modification thereof in force at the date at which these regulations become binding on the company.

II. STATUS AS A PRIVATE COMPANY

- 1. The Company is a Private Company within the meaning of Section 2(68) of the Act and accordingly:
 - a) Prohibition of Public Subscription: Any invitation to the public to subscribe for any securities of the company is prohibited.
 - b) The Company is licensed under Section 8 of the Companies Act, and shall function as a not for profit company.
 - c) This Company is for public purpose only.

III. MEMBERSHIP & LIABILITY

- 1. Members: The number of members with which the company proposes to be registered is four, but the Board of Directors may, from time to time, whenever the company or the business of the company requires it, register an increase of members.
- 2. Admission: The subscribers to the Memorandum and/or such other persons as the Board shall admit shall be members.

IV. SECTION 8 RESTRICTIONS

- 1. Application of Profits: The profits and income shall be applied solely for the promotion of the Company's objects.
- 2. No Dividends: No dividend, bonus, or profit shall be paid or transferred directly or indirectly to members.

V. GOVERNANCE STRUCTURE

- 1. The management and affairs of the Company shall vest in the Board of Directors, which shall exercise all powers of the Company subject to the Companies Act, 2013, the Memorandum and these Articles.
- 2. Governing Council: The State Government may constitute a Governing Council to provide strategic guidance and inter-departmental coordination guided by the MAITRI Act, Rules and policies framed thereunder. The Governing Council's role is advisory and policy-oriented, and it shall not exercise day-to-day operational control.

- a) **Constitution:** Pursuant to the Industries, Investment & Services Policy 2025 and any Government Resolution issued thereunder, the State Government shall constitute a Governing Council to provide apex policy oversight, strategic guidance and inter-departmental coordination for the Company.
- b) **Composition:** The Governing Council shall comprise the following, subject to any modifications or amendments duly approved by the competent authority:
- (i) The Chief Minister of Maharashtra — *Chairman*;
 - (ii) The Deputy Chief Ministers — *Co-Chairmen*;
 - (iii) The Minister for Industries, Investment & Services — *Vice Chairman*;
 - (iv) The Minister of State for Industries, Investment & Services — *Member*;
 - (v) The Chief Secretary, Government of Maharashtra — *Executive Chairman*;
 - (vi) The Additional Chief Secretary / Principal Secretary / Secretary, Industries, Investment & Services Department — *Member Secretary*;
 - (vii) The Additional Chief Secretary / Principal Secretary / Secretary, Finance Department — *Member*;
 - (viii) The Additional Chief Secretary / Principal Secretary / Secretary, Planning Department — *Member*;
 - (ix) The Additional Chief Secretary / Principal Secretary / Secretary, Energy Department — *Member*;
 - (x) The Additional Chief Secretary / Principal Secretary / Secretary, Labour Department — *Member*;
 - (xi) The Additional Chief Secretary / Principal Secretary / Secretary, Environment and Climate Change Department — *Member*;
 - (xii) The Additional Chief Secretary / Principal Secretary / Secretary, Skill, Employment, Entrepreneurship and Innovation Department — *Member*;
 - (xiii) The Additional Chief Secretary / Principal Secretary / Secretary, Higher and Technical Education Department — *Member*;
 - (xiv) The Additional Chief Secretary / Principal Secretary / Secretary, Tourism Department — *Member*;
 - (xv) The Development Commissioner (Industries)- *Member*; and
 - (xvi) Secretaries of concerned department, if required- *Invitee Members*.
- c) **Modification:** The State Government may modify the composition of the Governing Council and add, alter or remove members from time to time with the approval of State Government. Such alteration/modification shall take effect without requiring an amendment of these Articles.
- d) **Functions:** The Governing Council shall have the power to:
- (i) Review the strategic direction, annual priorities and performance framework of the Company;

- (ii) Facilitate inter-departmental coordination;
- (iii) Recommend measures for improving investor facilitation, service delivery and ecosystem development;
- (iv) Review key performance indicators, annual reports and broad outcomes; and
- (v) Perform such other advisory functions as the State Government may entrust.

e) **Non-Interference:** The Governing Council shall not exercise day-to-day executive functions or operational management control of the Company, which shall vest in the Board of Directors and the executive management of the Company.

3. The State Government may issue policy directions in matters involving public interest, which shall be binding on the Company, subject to applicable law(s).
4. Subject to approved budgets, delegated powers and applicable law(s), the Company shall have operational autonomy in matters relating to administration, staffing, procurement, partnerships, professional engagements and implementation of its programmes, and shall perform facilitative, coordinating, promotional and advisory functions in furtherance of its objects.

VI. BOARD OF DIRECTORS

1. Composition: The Company shall have a minimum of 2 (Two) and a maximum of 9 (Nine) directors.
2. Appointment: The Directors shall be appointed/nominated by the State Government within the composition defined for Governing Council or on Ex-Officio basis, if required.
3. First Directors: The persons named hereinafter shall be first directors of the Company:
 - A. Shri Dr. P. Anbalagan, Principal Secretary (Industries), GoM
 - B. Shri P. Velrasu, CEO, MIDC
 - C. Shri Dipendra Singh Kushwah, Development Commissioner (Industries)
 - D. Shri Vaibhav Waghmare, Additional Development Commissioner (Industries)
- 10)
4. Chairperson: The Chairperson of the Board shall be appointed in such manner as may be determined in accordance with applicable law. Chairperson shall have a casting vote in case of tie at any board or at any general meeting.
5. Executive Management: The Board may appoint an Executive Director and such other officers as may be necessary for the day-to-day management of the Company.
6. Validity of Acts: No act or proceeding of the Board or any committee shall be invalid merely by reason of any vacancy in, or defect in the appointment of, any Director, to the extent permitted by law.
7. Director Remuneration: (a) Each Director may receive a sitting fee for attending each meeting of the Board of Directors or such other fees or remuneration as may be

prescribed, of such sum as may be determined by the Board from time to time, subject to applicable law. (b) In addition to the fees payable under sub-clause (a), the Directors shall be entitled to be reimbursed for all traveling, hotel, and other expenses properly incurred by them in connection with: (i) in attending and returning from meetings of the Board of Directors or any committee thereof or general meetings of the company; or (ii) in connection with the business of the company.

8. The Board shall have the power to appoint, engage and manage employees, consultants and other personnel as may be necessary for the operations of the Company, in accordance with applicable law.

Proceedings of the Board

9. The Board of Directors may meet for the conduct of business, adjourn and otherwise regulate its meetings, as it thinks fit. A director may, and the manager or secretary on the requisition of a director shall, at any time, summon a meeting of the Board.
10. Save as otherwise expressly provided in the Act, questions arising at any meeting of the Board shall be decided by a majority of votes. In case of an equality of votes, the Chairperson of the Board, if any, shall have a second or casting vote.
11. The continuing directors may act notwithstanding any vacancy in the Board; but, if and so long as their number is reduced below the quorum fixed by the Act for a meeting of the Board, the continuing directors or director may act for the purpose of increasing the number of directors to that fixed for the quorum, or of summoning a general meeting of the company, but for no other purpose
12. The Board may constitute committees and delegate powers to such committees in accordance with the Companies Act, 2013. Any committee so formed shall, in the exercise of the powers so delegated, conform to any regulations that may be imposed on it by the Board.
13. A committee may elect a Chairperson of its meetings. If no such Chairperson is elected, or if at any meeting the Chairperson is not present within five minutes after the time appointed for holding the meeting, the members present may choose one of their members to be Chairperson of the meeting. A committee may meet and adjourn as it thinks proper.
14. Questions arising at any meeting of a committee shall be determined by a majority of votes of the members present, and in case of an equality of votes, the Chairman shall have a second or casting vote.
15. All acts done by any meeting of the Board or of a committee thereof or by any person acting as a director, shall, notwithstanding that it may be afterwards discovered that there was some defect in the appointment of any one or more of such directors or of any person acting as aforesaid, or that they or any of them were disqualified, be as valid as if every such director or such person had been duly appointed and was qualified to be a director.

16. CIRCULAR RESOLUTION: A resolution by circulation shall be as valid and effectual as a resolution duly passed at a meeting of the Directors called and held provided it has been circulated in draft form, together with the relevant papers, if any, to all the Directors and has been approved by majority of the Directors, entitled to vote thereon.

VII. Quorum of Board

1. The quorum of board meeting shall be minimum two directors present for the meeting or as per Companies Act 2013.

VIII. EXECUTIVE MANAGEMENT

1. Chief Executive Officer (CEO): The Additional Chief Secretary / Principal Secretary / Secretary, Industries, Investment & Services, Government of Maharashtra, shall be *ex officio* and act as the Chief Executive Officer of the Company, in accordance with the Maharashtra Industries, Investment & Services Policy, 2025.
2. Chief Operating Officer (COO): The Development Commissioner (Industries), Government of Maharashtra, shall be *ex officio* and act as the Chief Operating Officer of the Company, in accordance with the Maharashtra Industries, Investment & Services Policy, 2025, to assist the CEO in the operational management of the Company.
3. Executive Director (ED): The ED shall be the executive officer responsible for the day-to-day administrative affairs of the Company and the implementation of key decisions of the Board, subject to Board-approved policies, can assign operational responsibilities to authorised officers for efficient administration.
4. Service Conditions: The powers, duties, service conditions and accountability framework of the CEO, the COO, the ED and other officers of the Company shall be governed by applicable law, resolutions of the Board, and policies approved by the Board, and shall not form part of these Articles.

VIII. GENERAL MEETINGS

1. All general meetings other than the Annual General Meeting shall be called Extraordinary General Meetings.
2. The Board may, whenever it thinks fit, call an Extraordinary General Meeting of the Company.
3. If at any time directors capable of acting who are sufficient in number to form a quorum are not within India, any director or any two members of the Company may call an Extraordinary General Meeting in the same manner, as nearly as possible, as that in which such a meeting may be called by the Board.

Proceedings at general meetings

4. No business shall be transacted at any general meeting unless a quorum of members is present at the time when the meeting proceeds to business. The quorum for general meetings shall be as provided under the Companies Act.
5. The Chairperson of the Board shall preside as Chairperson at every general meeting of the Company. If there is no such Chairperson, or if they are not present within fifteen minutes after the time appointed for holding the meeting or are unwilling to act, the directors present shall elect one of their members to be Chairperson of the meeting.
6. If at any meeting no director is willing to act as Chairperson or if no director is present within fifteen minutes after the time appointed for holding the meeting, the members present shall choose one of their members to be Chairperson of the meeting.

Adjournment of meeting

7. The Chairperson may, with the consent of the meeting at which a quorum is present, and shall, if so directed by the meeting, adjourn the meeting from time to time and from place to place.
8. No business shall be transacted at any adjourned meeting other than the business left unfinished at the meeting from which the adjournment took place.
9. When a meeting is adjourned for thirty days or more, notice of the adjourned meeting shall be given as in the case of an original meeting.
10. Save as aforesaid, it shall not be necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.

Voting Rights

11. Subject to the provisions of the Companies Act, 2013, every member of the Company shall have one vote, whether on a show of hands or on a poll, at every general meeting of the Company.
12. Voting at any general meeting shall, in the first instance, be by show of hands, unless a poll is demanded under Section 109 of the Companies Act, 2013, or voting is required to be carried out by electronic means under Section 108 of the Companies Act, 2013 read with Rule 20 of the Companies (Management and Administration) Rules, 2014. A member may exercise his vote at a meeting by electronic means in accordance with Section 108 of the Companies Act, 2013, and shall vote only once in respect of any resolution.
13. Save as otherwise required by the Companies Act, 2013, or by these Articles, resolutions at a general meeting shall be passed by a simple majority of the members present and

voting (ordinary resolution). Where a special resolution is required by the Act or by these Articles, it shall be passed in accordance with Section 114(2) of the Companies Act, 2013.

14. In case of an equality of votes, whether on a show of hands or on a poll, the Chairperson of the meeting shall have a second or casting vote, which shall be exercised in the best interest of the Company and decision of Chairperson shall be final and conclusive.
15. No member shall be entitled to vote at any general meeting unless all sums presently payable by such member to the Company, including any subscription or guarantee amount due, have been paid.
16. An instrument appointing a proxy shall be in the form as prescribed under the Act.
17. A member, body corporate or a Department of the Government of Maharashtra being a member may, by an authorisation in writing, authorise any person to act as its representative at any general meeting of the Company. Such authorised representative shall be entitled to exercise the same rights and powers, including the right to vote, as the member could exercise if it were an individual member.

IX. ACCOUNTS & AUDIT

1. Books of Account: The Company shall maintain proper books of accounts on an accrual basis and according to the double-entry system.
2. Audit: Auditors shall be appointed, and their duties regulated in accordance with the Act. The audited accounts of the Company shall be subject to such additional audit or review as may be required under applicable law, including audit by the Comptroller and Auditor General of India, where applicable.
3. The Company shall maintain appropriate performance, financial and governance reporting systems and shall submit to the State Government and/or the Governing Council such reports, statements, audited accounts, annual reports or disclosures as may be required under applicable law or as may be reasonably prescribed.
4. The Company may receive, hold and administer a dedicated Catalytic Fund for the promotion of Frontier and Emerging Sectors in manufacturing and services, as identified under the Industries, Investment & Services Policy 2025 or as the State Government may notify from time to time.

X. ALTERATION OF ARTICLES

1. These Articles may be altered in accordance with the provisions of the Companies Act. Any alteration shall be subject to such approvals, if any, as may be required under applicable law.

XI. DISSOLUTION

1. Application of Assets: The Company shall be wound up in accordance with the provisions of the Companies Act, 2013 applicable to companies licensed under Section 8. Upon winding up or dissolution of the Company, and after satisfaction of all its debts and liabilities, the remaining assets shall not be distributed to its members, but shall be transferred to another company registered under Section 8 of the Companies Act, 2013 having similar objects, in accordance with applicable law and with the approval of the government of state of Maharashtra.

XII. INDEMNITY

1. To indemnify officers, agents and servants of the Company against all bona fide proceedings, costs, damages, claims and demands, in respect of anything done by them for and in the interest of the Company of any loss, damage or misfortune whatever which shall happen in the execution of the duties of their office or by relation thereto.

XIII. SEAL

1. The Board shall provide for the safe custody of the seal.
2. The seal of the company shall not be affixed to any instrument except by the authority of a resolution of the Board or of a committee of the Board authorised by it in that behalf, and except in the presence of at least two directors and of the secretary or such other person as the Board may appoint for the purpose; and those two directors and the secretary or other person aforesaid shall sign every instrument to which the seal of the company is so affixed in their presence.

Sr. No.	Name & Address of Subscriber	Description	Signature	No. of Members	Date	Signature, Name, Description and Occupation of the Witness.
1.	Dr.P. Anbalagan, IAS, Principal Secretary (Industry), Mantralaya, Mumbai-32	ACS/Principal Secretary (Industry)	1			
2.	Sh P Velrasu, (IAS), CEO MIDC, Udyog	Chief Executive Officer	1			

	Sarathi, Mahakali Caves Road, Marol Industrial Area, Andheri East, Mumbai - 400093, Maharashtra	(CEO), Maharashtra Industrial Development Corporation (MIDC)				
3.	Sh Deependra Singh Kushwah (IAS), Development Commissioner (Industry), 2nd Floor, New Administrative Building, Opposite Mantralaya, Mumbai-32	Development Commissioner (Industry)	1			
4	Sh Vaibhav Waghmare (IAS), MAITRI, Krupanidhi (MSSIDC) Building, 9, Walchand Hirachand Marg, Ballard Estate, Mumbai-38	Additional Development Commissioner (Industry), MAITRI	1			

Place: Mumbai, Maharashtra

Date: